

26STCP01400 26STCP01400

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-24

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Case Number: 26STCP01400 Hearing Date: June 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June 24, 2026 TRIAL DATE: Not
set

CASE: Dean Smith v. USAA General Indemnity Company

CASE NO.: 26STCP01400

MOTION

TO COMPEL BINDING ARBITRATION AND APPOINT A

NEUTRAL

ARBITRATOR BY PETITIONER DEAN SMITH

MOVING PARTY: Petitioner

Dean Smith

RESPONDING PARTY: No opposition

I. INTRODUCTION

Petitioner,

Dean Smith, was riding a bicycle when an underinsured driver caused a collision
with Petitioner. Thereafter, Petitioner submitted
a policy limits demand to Respondent, USAA General Indemnity Company, and

alternatively, demanded underinsured motorist arbitration and proposed three neutral arbitrators. However, to date, Respondent has failed to respond to the demand.

On

April 7, 2026, Petitioner filed a petition to open unlimited civil court file to establish the court's jurisdiction over the appointment of a single neutral arbitrator.

On

April 27, 2026, Petitioner filed this motion to compel binding arbitration and appoint a neutral arbitrator.

The

motion is unopposed.

II. LEGAL STANDARD

Recovery by an insured on an uninsured or underinsured motorist provision (UIM/UM) of an automobile insurance policy is governed by Insurance Code section 11580.2. If the insured and insurer cannot agree as to whether the insured is entitled to benefits under the UIM/UM provision or how much the insured is entitled to, the matter must be decided by arbitration conducted by a single neutral arbitrator. (Ins. Code, § 11580.2, subd. (f).) The discovery methods provided in Title 4 of the Code of Civil Procedure (the Civil Discovery Act) are available to either party, both before and after the commencement of arbitration, and the Superior Court has jurisdiction to adjudicate discovery disputes. (Ins. Code, §§ 11580.2, subds. (f) & (f)(2).)

"No cause of action shall accrue to the insured under any policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident:

(A) Suit

for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction.

(B) Agreement

as to the amount due under the policy has been concluded.

(C) The insured has formally instituted arbitration proceedings by notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department.”

(Ins. Code, § 11580.2, subd. (i).)

III. DISCUSSION

The court will deny the motion for two reasons. First, Petitioner does not present any evidence that Respondent issued an insurance policy to Petitioner. Rather, Petitioner simply submits one page of an insurance policy. (See Yazdanpanah Decl., Ex. C.) This is insufficient to establish the existence of an insurance policy and importantly, an agreement to arbitrate under the UIM/UM provisions of the Insurance Code. (Code Civ. Proc., § 1281.2.)

Second, Petitioner does not establish that this motion was properly served on Respondent.

Respondent has not appeared in this action. Thus, Petitioner was required to serve Respondent with notice of the motion to compel arbitration by personal service, or in the manner specified by the arbitration agreement. (Code Civ. Proc., § 1290.4.) There is no proof of personal service of this motion. Instead, Petitioner submits an email which memorializes a phone conversation with Respondent’s counsel during which Respondent’s counsel purportedly agreed to electronic service of the motion. The court finds this evidence is insufficient to establish agreement to electronic service.

IV. CONCLUSION

Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE.

Petitioner is ordered to give notice.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court